

October 19, 2011



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 14373
(SECOND REVISION)

EXPIRATION DATE: August 31, 2015

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Zippo Manufacturing Co.
Bradford, PA
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain compressed gas fueled and liquid-fueled cigarette lighters in checked baggage of passenger aircraft when packaged in a rigid, vapor-tight non-DOT specification solid plastic packaging that prevents any movement of the lighter during transport. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use or other uses not associated with transportation in commerce.
 - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: Subchapter C of 49 CFR in that lighters are authorized to be shipped in a non-DOT specification solid plastic packaging in accordance with this special permit when transported in checked baggage by domestic passenger aircraft.

5. BASIS: This special permit is based on the application of Zippo Manufacturing Corporation dated September 20, 2011, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
Lighters or Lighter refills containing flammable gas	2.1	UN1057	N/A
Lighters, <i>non-pressurized containing flammable liquid</i>	3	NA1057	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a vapor-tight non-DOT specification solid plastic packaging meeting the following:

(1) Each design must successfully pass the performance tests specified for a UN1H2 solid plastic drum; and

(2) Each design must provide a vapor-tight seal against any loss of fuel and prevent any movement of the lighter during transport.

b. TESTING -

(1) Each design of the non-DOT specification solid plastic packaging must be tested to and withstand a partial vacuum of 28 inches of mercury for not less than 30 minutes at 100°F with no leakage.

(2) Each design of the non-DOT specification solid plastic packaging must be periodically retested as specified for a UN1H2 solid plastic drum.

8. SPECIAL PROVISIONS:

a. Each outer packaging, as described in paragraph 7 above, may contain no more than: two (2) approved flammable gas fueled cigarette lighters; or two (2) liquid (naphtha, Isopar-E, etc.) cigarette lighters. No passenger may carry more than one (1) outer package in their checked luggage.

b. A person who is not a holder of this special permit and who intends to place a liquid-fueled or flammable gas-fueled lighter contained within a non-DOT specification solid plastic packaging in checked baggage on a passenger aircraft may do so provided no modification or change is made to the package and it is offered for transportation in conformance with this special permit.

c. The non-DOT specification solid plastic packaging must be plainly and durably marked with letters and numbers at least 1/4" in height as follows:

(1) "Lighters in this packaging conform to DOT-SP 14373 and may be transported in checked baggage by domestic passenger aircraft".

(2) "Apply the closure to the jar until the cap liner contacts the jar's lip area and then rotate the closure approximately 1/4 of an inch."

d. The shipping paper and marking requirements specified in 49 CFR Part 172 Subparts C and D are waived.

e. Purchasers of the non-DOT specification solid plastic packaging authorized by this special permit must be provided with instructions on the use and maintenance of the packaging.

9. MODES OF TRANSPORTATION AUTHORIZED: Passenger-carrying aircraft.
10. MODAL REQUIREMENTS: None as a requirement of this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety -- OHMSPA, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm

Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: DBurger/SG